

IN THE HIGH COURT OF JUDICATURE AT BOMBAY

Commercial Arbitration Petition No. 412/2024

Date of Decision: 12-03-2024

Global Shipping Corp ... Petitioner

VERSUS

Indian Port Logistics ... Respondent

FACTS OF THE CASE:

1. Petition under Section 9 of the Arbitration and Conciliation Act, 1996 for interim relief.

ISSUES:

1. Protection of assets pending arbitration proceedings.

REASONING & DECISION:

Prima facie case and balance of convenience favor interim protection under Section 9.

RATIO DECIDENDI:

Section 9 powers can be invoked pre-arbitration to preserve subject matter of dispute.

DECISION:

Injunction granted restraining creation of third party rights.